Privacy policy

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Privacy policy

Terms and conditions of use

Subscription terms

Money-back policy

Impressum

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European Dispute Resolution

e-Privacy Settings

In order to use some of our apps or websites, we may ask you to enter your name, email, weight, height, fitness level, areas for improvement, food preferences, and ask other onboarding questions depending on the app or web products you choose from our ecosystem (for example, some mental wellness information may be required to use our mental wellness app). In some of our apps you are able to skip some of the onboarding questions by tapping on Skip or similar indication.

We also may automatically collect from your device: language settings, IP address, time zone, type and model of a device, device settings, operating system, other technical information. We need this data to provide our services (for example, to render a certain element of the product), analyze how our customers use the app (for example, to know whether our customers use the features we release), to serve ads. Most of the times, you can influence such processing by limiting it via our privacy features available on the websites and/or apps.

Please read our Privacy Policy below to know more about what we do with data (Section 2), what data privacy rights are available to you (Section 4). Depending on the region from where you access our Services and the choice of our product, we strive to provide you with various privacy control features and rights. For example:

Influence online tracking via e-Privacy settings in our apps or websites.

Opt-out from sale/share of data (in the meaning of certain US laws).

When such features are available to you, this will be prominently displayed either in footers, menus, or profile sections of our products. We aim to provide most of these rights as privacy features that may be accessed by you on your own by simple UX/UI friendly interactions with our service (when you struggle to find them or they are not available as a feature, please submit a request to us).

If any questions will remain unanswered or you would like to exercise your privacy rights, please contact us at privacy@betterme.world

Privacy Policy

This Privacy Policy explains and lists the transparency information regarding what personal data is collected when you use our mobile applications, websites and the services provided through them (together "App" or "Service"), how such personal data will be processed.

By using the service, you promise us that (i) you have read, understand and agree to this privacy policy and the data processing described, and (ii) you are over 18 years of age. If you do not agree, or are unable to make this promise, you must not use the Service. In such case, you must (a) delete your account and contact us and request deletion of your data; (b) cancel any subscriptions using the functionality provided by Apple (if you are using iOS) or Google (if you are using Android), any other app stores that may be available from time to time, or by us if you purchased it directly from our websites; and (c) delete the App from your devices.

Any translation from the English version is provided for your convenience and transparency purposes only. In the event of any difference in meaning or interpretation between the English language version of this Privacy Policy available at https://betterme.world/privacy-policy, and any translation, the English language version will prevail. The original English text shall be the sole legally binding version.

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(i) you directly provide to us (for example, when you choose your areas for improvement or send us an email or when interacting with our coaches),
(ii) we receive about you from third parties (for example, when you sign in via Apple or allow us to access Apple Health app or Health Connect data),
(iii) automatically when you use our Service (for example, your IP address via cookies or SDK technologies) or when you use our devices (for example, BetterMe Band).

1.1. Data directly provided by you

1. Identifiers
This may include your name, phone number, email address. You provide us with this information when you register for the Service, purchase our physical products, subscribe to our newsletters, or contact us by any other means.

2. Onboarding and product data
You provide us with this category of information when you register for the Service and/or go through the onboarding process and/or use the Service. This category, in particular, includes:

> **General information about you**. For example, age, date of birth, gender, etc.
>
> **Wellness and Fitness information**, which covers physical characteristics such as height and weight, data related to your workouts, meditation and breathing preferences, sleep patterns, and the type and duration of physical activities you engage in. We may also ask you to provide information on your fitness level, nutritional preferences, or provide you with an option to track your water, food intake. We leverage selected pieces of this data to tailor your experience as a part of the services we deliver.
>
> **Special wellness data.** Some pieces of information we collect may be regarded as a special category of personal data or sensitive data under certain data protection laws that we are subject to. When this is the case, for example, when we ask you whether you need a meal plan for diabetes or whether you decide to opt-in for a limb loss special program or where you decide to use our cycle tracking feature, we will strive to ask your consent for processing of such data.

3. BetterMe Store purchases data
When you buy our physical products, such as BetterMe devices (for example, BetterMe Band), apparel, accessories and other wellness goods ("Products") at BetterMe Store, you provide us with your delivery address, size of the Products and other characteristics of the Products.

4. Commercial information
When you make payments through the Service, you need to provide financial account data, such as your credit card number, to our third-party service providers that serve us as data and payments processors. We do not collect or store, or have access to full credit card number data, though we may receive some limited information, including credit card-related data (including a secure token reflecting your payment method), data about products or services purchased, date, time and amount of the purchase, the type of payment method used, limited digits of your card number.

6. Conversation with coaches
We offer the opportunity to interact with coaches as part of our premium services. During these interactions, we process the text of your conversations with our coaches (including by the means of our data processors referenced as Communication services providers in Section 3). This category includes any information you may share during these conversations such as your progress, feedback, questions, goals, photographs of your meals or any other details you may discuss.

7. Comments you provide with your requests
You may also provide us with some personal information using our "Contact us" forms or by sending emails on our email addresses (including by the means of our data processors referenced as Communication services providers in Section 3). This information may include any comments you log in when you send your inquiry.

1.2. Data provided by third parties

1. Apple ID account
When you sign in with Apple to register an account in the App, we get personal data from your Apple ID account. This data may include, in particular, your name and verified email address. You may choose to share your real email address or an anonymous one that uses the private email relay service. Apple will show you their detailed privacy information on the sign in with the Apple screen. Find more about sign with Apple here.

2. Apple Health app (and Apple Motion & Fitness API) or Health Connect (together the "Health App")

Provided you give express permission on your device, we may receive (read) or/and write (share) data about your activity with/from Health App. In some of our Apps, you may decide to allow us to read (receive) the following information from the Health App: the number of steps, covered distance, weight, and dietary energy, and other data that you chose on the consent screen. If you grant access for us to write data to (share with) Health App, we will transfer to Health App information on your workouts, weight, and dietary energy (calories intake). The pieces of data covered by Health Apps scope will be indicated to you by Apple or Google on their native pop-up screens, which we do not have control of.

Before you decide to share your data with the Health App, we encourage you to review their privacy policy, as your data will be subject to those policies. For more information on the Apple Health app, please see http://www.apple.com/ios/health/, and on the Health Connect, please see https://health.google/health-connect-android/. You can withdraw our access to read/write data from the Health App at any time directly in the Health App.

1.3. Data we collect automatically

1. Online activity
We record how you interact with our Service. For example, we log your interactions with certain areas of the interface, the features, and content, workouts you do, the time and duration of your workouts, your

buy BetterMe Band, which is a fitness tracker device. When you connect the device to the BetterMe App, we may process the data collected by the devices (for example, steps count, heart rate measurements, sleep statistics). We will strive to ask you for your consent to process such data before collecting it (usually, on a pop-up screen that emerges when you connect the device to the App).

2. Device and Geolocation data

We collect data from your mobile device. Examples of such data include: language settings, Internet Protocol address, time zone, type and model of a device, device settings, operating system, Internet service provider, mobile carrier, hardware ID, and Facebook ID. If you consent in certain of our products to share the geolocation data (for example, for you running routes), the app may receive this data as well.

3. Advertising IDs

We collect your Apple Identifier for Advertising ("IDFA") or Google Advertising ID ("AAID") (depending on the operating system of your device). You can typically reset these numbers through the settings of your device's operating system (but we do not control this).

4. Cookies and similar tracking technologies

Our products employ technologies (cookies, SDKs, etc.) to process your data to enhance your user experience, optimize ads, and analyze traffic. These technologies are activated when you interact with our services, visit our website, use our apps, or enable certain features like chats. Disabling these technologies may affect the functionality of certain features, although our products will remain usable.

Furthermore, we and our partners utilize targeting technologies to tailor ads, potentially displaying them to you at relevant moments. When enabled, your interactions with our website or app could result in seeing our ads on social media platforms, assisting us in measuring ad campaign effectiveness. We respect your right to privacy and provide you with the option not to allow data processing that is not required for providing you the services you request. We use, in particular, the following categories of tracking technologies:

Strictly necessary

Our products and their features require certain technologies to function properly. These technologies are typically activated when you request our service, for example, when you visit our website or open the app. By utilizing them, we can (i) remember your preferences as you navigate our products, (ii) ensure swift loading of the content you request, (iii) enhance the security of our products, and (iv) enable other functionalities of our products.

Moreover, some of these technologies are activated when you enable certain features like chats or request customer support.

Functional

selections.

If you disable these technologies, some features may not function properly, although you will still be able to use our products.

Performance

We use performance technologies to process information about how you and others interact with our products. This helps us understand user engagement with our products and features, and identify preferences or dislikes. Some examples include:

- Counting visits and identifying traffic sources.
- Understanding which sections or features are most favored.
- Analyzing user preferences to help us decide what new features to build.

When you disable performance technologies, we will not receive certain information that we process for analytical purposes.

Targeting

We, and our partners, use targeting technologies to tailor ads and possibly even display them to you at relevant times. For instance, if these technologies are enabled and you interact with our website or app, you might see ads for our products in your social media feeds. Additionally, they help us measure the effectiveness of advertising campaigns and make advertising more relevant to you.

If you decline these targeting technologies, you may see less relevant ads and miss our timely offers. It would also be more challenging for us to measure ad effectiveness.

2. What are the purposes and legal bases for processing your personal data

We collect and utilize your data primarily to provide our services, enhance the quality of our fitness and wellness services and to continuously improve them. Furthermore, we aim to attract new customers to our products. Below, you'll find a more comprehensive breakdown of how we use your information, illustrated with clear examples.

Please also note that some pieces of information we collect, including pertaining to the Onboarding and product data, may be regarded as a special category of personal data or sensitive data under certain data protection legislation that we are subject to. When this is the case, for example, when we ask you whether you need a meal plan for diabetes, we will strive to ask your consent for processing of such data. However, please note, that if the information necessary for the provision of Service is special category of personal data (for example, diabetes type to provide a plan suitable for you, or heart rate data from your BetterMe Band to allow you to use the band in connection with the App), consent will be

processing*		personal data	
To provide our Service and administer your account	This includes verifying your identity, email verification, enabling you to access and use our Service in a seamless manner and preventing or addressing Service errors or technical issues, customizing your experience. Consequences of this processing may also include: Customizing your experience means that we adjust the content of the Service and provide content tailored to your personal preferences. As a result, you get access, for example, to a nutrition plan containing only vegetarian products or a customized meal plan offer (in the in-App chat) tailored for achieving your goals. Responding to your requests for technical or customer support, Service information or to any other communication you initiate. This includes accessing your account to address technical support requests, providing a comprehensive answer to your inquiries, making sure that you are satisfied with our Service, as well as processing any disputes in regard of our Service, accessing your account to address technical support requests. For this purpose, we may send you, for example, notifications or emails about the performance of our Service, security, payment transactions, notices regarding our Terms and Conditions of Use or this Privacy Policy.	All categories	**Performing our contract with you** **Or consent if the data relates to a special category of personal data in a covered jurisdiction.**
To communicate with you regarding your use of our Service	We communicate with you, for example, by push notifications. These may include reminders and motivational messages encouraging you to follow your training and nutrition plan, or other information about the Service, password resets or account updates. As a result, you may, for example, receive a push notification every day at a particular time reminding you to work out. To opt out of receiving push notifications, you need to change the settings on your device. We may also communicate with you regarding important updates or changes to our Service, to gather feedback on our Service or to respond to any inquiries or complaints you may have.	All categories	**Performing our contract with you** (or legitimate interest*, when it is not necessary for provision of our Service)
To communicate with you regarding possible cooperation	This includes being able to contact you to discuss possible forms of cooperation, such as partnership opportunities or service enhancements that may be of interest to you.	Identifiers B2B Service data	**Legitimate interest***
To process and fulfill your transactions	This includes managing and fulfilling your orders and requests, providing customer support in regards to your orders, delivering the Products to you, processing your payments, providing receipts and order confirmations/updates, processing returns or disputes related to an order.	Identifiers Commercial information Device and Geolocation data B2B Service data	**Performing our contract with you**

	or collect your payment card details ourselves.		
To research and analyze your use of the Service	This helps us to better understand our business, analyze our operations, maintain, improve, innovate, plan, design, and develop the Service and our new products. We also use data for statistical analysis purposes, to test and improve our offers. This enables us to better understand what features and training plans of the Service our users like more, what categories of users use our Service. As a consequence, we often decide how to improve the Service based on the results obtained from this processing. For example, if we discover that users more often engage in workouts designated for legs, we may develop and introduce a new workout for this area into the Service.	All categories	**Legitimate interest** (unless it requires consent, e.g. relates to special category of personal data or the method of processing is covered under certain e-Privacy regulations)
To send our marketing communications	We may add your email address to our marketing list, provided we receive consent or otherwise establish legal basis for sending you marketing communications. As a result, you will receive information about our products, such as for example, special offers. If you do not want to receive marketing emails from us, you can unsubscribe following instructions in the footer of the marketing emails.	Identifiers	**Consent or Legitimate interest*** (in jurisdictions that allow exception to consent requirements)
To personalize our ads	We and our partners, use your personal data to tailor ads and possibly even show them to you at the relevant time. For example, if you have installed our Service, you might see ads of our products, for example, in your Instagram's feed.	Onboarding and product data Commercial information BetterMe Store purchases data Device and Geolocation data Advertising IDs (for example, we may use it for preventing or fixing technical issues); Cookies and similar tracking technologies	**Consent or Legitimate interest*** (unless it requires consent, for example, when covered under certain e-Privacy regulations)
To audit ad performances	That means to conduct auditing related to counting ad impressions to unique visitors, verifying positioning and quality of ad impressions, and auditing compliance with this specification and other standards.	Identifiers Onboarding data Commercial information Device and Geolocation data Advertising IDs; Cookies and similar tracking	**Consent or Legitimate interest*** (unless it requires consent, for example, when covered under certain e-Privacy regulations)

To enforce our Terms and Conditions of Use and to prevent and combat fraud	We collect and store personal data to the extent necessary to defend our legal rights and interests in the event of legal disputes or claims. This may include using the data to support our legal claims, respond to legal requests, or establish, exercise, or defend our legal position.	All categories	**Legitimate interest***
To comply with legal obligations	We may use this data to comply with legal obligations, such as tax regulations, accounting standards, or other applicable laws and regulations. Specifically, we may use your Commercial information to calculate and report taxes owed, issue invoices or receipts, respond to tax-related inquiries from government authorities, maintain accurate financial records, comply with data protection laws, such as CCPA and GDPR, respond to lawful requests from law enforcement or regulatory agencies, etc.	All categories	**Complying with legal obligations**

*We rely, in particular, on the following legitimate interests:

To communicate with you regarding your use of our Service
This includes, for example, sending you push notifications reminding you to exercise at appropriate times. The legitimate interest we rely on for this purpose is our interest to encourage you to use our Service more often. We also take into account the potential benefits to you of following your training and nutrition plan, which may lead you to a better and healthier lifestyle.

To communicate with you regarding possible cooperation
To communicate with you regarding possible cooperation. The legitimate interest we rely on for this processing is our interest to establish and maintain business relationships with potential partners, clients or collaborators allowing you to benefit from our programs and offers.

To research and analyze your use of the Service
Our legitimate interest for this purpose is our interest in improving our Service so that we understand users' preferences and are able to provide you with a better experience (for example, to make the use of the App easier and more enjoyable, or to introduce and test new features).

To send you marketing communications (unless you provide consent to that)
The legitimate interest for this processing is our interest to promote our Service in a measured and appropriate way. We may rely on it, for example, when we have an established business relationship with you, which may cover purchasing some products within the Service.

To personalize our ads
We rely on our interest to promote our Service in a reasonably targeted way.

To audit ad performances
The legitimate interest for this processing is our interest in ensuring the accuracy and quality of our advertising services and complying with industry standards.

To defend our legal rights and interests
The legitimate interest refers to our need to protect ourselves from legal disputes, claims, or other actions that could threaten our operations, reputation, or financial stability. This interest is considered

To enforce our Terms and Conditions of Use and to prevent and combat fraud
Our legitimate interests for this purpose are enforcing our legal rights, preventing and addressing fraud and unauthorized use of the Service, non-compliance with our Terms and Conditions of Use.

3. With whom we share your personal data

A. General classification

We engage partners to carry out specific services or business functions on our behalf using their technologies and resources, based on our instructions. This cooperation may involve, in particular, processing your data using their software development kits (SDKs), APIs, cookies, and other technologies. Consequently, your information is transferred and processed on their servers (usually without a partner's direct access to the specific pieces of information) on our behalf for our purposes.

Such type of processing of personal data may be regarded as sharing of information with third parties. We strive to conclude specific data processing agreements with all such parties to establish the rules for processing of your data specifically on our behalf and limited to it. Our partners help us operate, provide, improve, integrate, customize, support, and market our Service.

The types of third parties we share information with include, in particular:

1. Third-party services providers

We share personal data with third parties that we hire to provide services or perform business functions on our behalf, based on our instructions. We process your personal information using the following types of service providers (and in certain cases, their subprocessors):

a. Cloud storage providers

To host personal data and enable our Service to operate and be distributed we use **Amazon Web Services**, which is a hosting and backend service provided by Amazon. You may read more on Amazon's security practices on its website.

b. Product monitoring service providers

To monitor infrastructure and the App's performance, we use **Crashlytics**, which is a monitoring service provided by Google. Here's its Data Collection Policy.

We use **Firebase Performance Monitoring** and **Firebase Crash Reporting**, which are monitoring services provided by Google. To learn more, please visit Google's Privacy policy and Privacy and Security in Firebase.

We use **Sentry**, which is a monitoring service provided by Functional Software Inc. that helps us identify and resolve errors and crashes in our apps across different platforms such as JavaScript, Python, Ruby, Java and React. Sentry automatically captures all unhandled exceptions and relevant diagnostic data such as device information, app version, user feedback and

We use **Logz.io**, which is a monitoring service provided by Logz.io Ltd. that helps us collect, analyze and visualize logs from our App and its environment. Logz.io automatically ingests logs from various sources such as files, cloud services, containers and databases. Logz.io also provides us with insights, alerts and dashboards to help us monitor our App's health and performance. Logz.io also supports metrics and traces monitoring, as well as security analytics. Logz.io is committed to protecting your privacy and data security. You can read more about Logz.io's privacy practices in its Privacy Policy.

c. Email verification service providers

We use **ZeroBounce**, which is an email verification service provider that helps us validate, check and verify emails instantly. ZeroBounce allows us to improve our email deliverability and open rates by removing invalid, spammy and inactive addresses from our lists. Zerobounce stores email validation results up to 30 days, and then deletes them automatically.

d. Data analytics providers

Ad performance measurement systems

To perform research and analysis about how users interact with our App we use **Appsflyer**. Appsflyer enables us to understand, in particular, how users find us (for example, who was the advertiser that delivered an ad to users, which led you to an app store with our App). Appsflyer also provides us with different analytics tools that enable us to research and analyze your use of the Service.Appsflyer allows you to Opt Out of having data from my device sent to AppsFlyer's servers for apps usage collection. You can read more about Appsflyer's privacy practices in its Privacy Policy.

General analytics tools

We also use **Amplitude** that is an analytics service that we use to understand how customers use our Service. Amplitude collects various technical information, in particular, time zone, type of device (phone or tablet), unique identifiers (such as IDFA). Amplitude also allows us to track various interactions that occur in our App. As a result, Amplitude helps us to decide what features we should focus on (for example, if we see that most of the users focus on walking meditation workouts, we may develop more of these). Amplitude is EU-US Privacy Shield certified. Amplitude provides more information on how they process data in its Privacy Policy.

To analyze how visitors use the Service and to measure the effectiveness of some ads we use **Google Analytics**, a web analysis program of Google. On Google Analytics we get, in particular, information on the data you enter on our website and users' interactions within the website. Google allows you to influence the collection and processing of the information generated by Google, in particular, by installing a browser plug-in, available here. You can read more about how Google uses the information here.

To track and analyze behavior of our App's users (in particular, how they react to changes of the App structure, text or any other component), we use **Firebase Remote Config**. Firebase Remote

e. Gateway service providers and payment processing partners

We use various payment processing and payment gateway providers that help us connect with different banks and payment systems around the world. These providers allow us to offer our customers a wide range of payment options and ensure fast and smooth transactions. Due to the large number of payment processing providers we work with, we cannot list them all here. However, some examples are Trustpay, Connectum, Checkout. Each payment processing provider has its own terms and conditions and privacy policy that may apply to the transactions they process.

f. Processing orders providers

Shopify is an e-commerce service that allows us to create and manage our online store. In particular, Shopify allows us to display our products, process payments, and track orders and inventory. Some of your information such as your name, email address, shipping address and payment details are transferred to Shopify when you make a purchase on our online store. The transfer is required to enable us to fulfill your order and provide you with a smooth shopping experience. Read more about Shopify's approach to privacy in its Privacy Policy.

g. Communication services providers

Intercom provides us with message and customer service tools, which enable us to communicate with you within the Service. When you chat with us via in-Service chat, some of your information is processed by Intercom on our behalf. Such processing is required to enable us to identify (if you shared any name related data with us) and to communicate with you in the in-App chat. Thus, Intercom uses these data to provide and fulfill its services to us and allow us to use some of our features (as set forth in their terms of service). Intercom is EU-US Privacy Shield certified. Read more about Intercom's approach to privacy in its Privacy Policy.

To enable you to chat with coaches within the Service, we use **Stream Chat**, which is a chat API and in-app messaging service. Stream Chat allows us to create chat channels where you can interact via real-time messaging, emoticons and gifs. When you join a chat channel on our Service, some of your information is automatically transferred to Stream Chat. The transfer is required to enable us to identify you as a chat participant and to facilitate your communication with coaches.

Zendesk provides us with customer service software, which enables us to handle your inquiries and requests via email, chat, phone and other channels. Thus, when you contact us via any of these channels, some of your information is automatically transferred to Zendesk. The transfer is required to provide you with timely and effective support. Read more about Zendesk's approach to privacy on their website.

We use **Apple Push Notification service** ("APNs"), that is a notifications service provided by Apple. APNs allows us to send information to iOS devices. Apple's privacy policy.

and track opening and conversion events. As a result, we can, for example, send encouraging messages to users who have recently finished a training program. Google's privacy policy.

OneSignal provides us with push notification software, which enables us to send you messages and alerts on your device. When you enable notifications from our applications, some of your information is automatically transferred to OneSignal. The transfer is required to enable us to identify your device and preferences and to communicate with you effectively. Read more about OneSignal's approach to privacy in its Privacy Policy.

We use **eSputnik**, which is an omnichannel customer data platform for B2C marketing, to send you email advertising and transactional emails. eSputnik allows us to segment our customers based on their behavior and preferences and to send them personalized recommendations via email. When you subscribe to our email newsletter or make a purchase on our Service, some of your information is automatically transferred to eSputnik in order to allow us to communicate with you via emails.

h. Marketing service providers

Meta. We use **Meta Ads Manager** together with **MetaMeta Custom Audience**, which allows us to choose audiences that will see our ads on Facebook or other Facebook's products (for example, Instagram). Through MetaMeta Custom Audience we may create a list of users with certain sets of data, such as an IDFA, choose users that have completed certain actions in the App (for example, installed it). As a result, we may ask Facebook to show some ads to a particular list of users. As a result, more of our ads may show up while you are using Facebook or other Facebook's products (for example, Instagram). You may learn how to opt out of advertising provided to you through Facebook Custom Audience here.

Facebook also allows its users to influence the types of ads they see on Facebook. To find how to control the ads you see on Facebook, please go here or adjust your ads settings on Facebook.

Google Ads is an ad delivery service provided by Google that can deliver ads to users. In particular, Google allows us to tailor the ads in a way that they will appear, for example, only to users that have conducted certain actions with our App (for example, show our ads to users who have purchased a subscription). Some other examples of events that may be used for tailoring ads include, in particular, installing our App, finishing a workout program. Google allows its users to opt out of Google's personalized ads and to prevent their data from being used by Google Analytics.

We also use **Snapchat Advertising Platform** together with **Snapchat Audience Based Match**, which is an ad delivery service provided by Snapchat that can link the activity of some users of our App with the Snapchat advertising network and show some of our ads to them. As a result, you may see more ads on Snapchat in case you use our App. Snapchat allows you to Opt Out of their audience based ads. Privacy Policy.

installing our App, finishing a workout program or purchasing a subscription. Pinterest allows you to opt out of personalized ads in your account settings.

Ad networks, ad agencies and direct publishers are third-party services that provide us with advertising solutions for displaying our ads on various websites and apps. In particular, these services allow us to target our ads based on your interests and activities on our App and other websites. Some examples of events that may be used for targeting ads include, in particular, installing our App, finishing a workout program or purchasing a subscription. These services may also collect some information about you such as your device ID or IP address for delivering relevant ads. You can opt out of interest-based advertising by visiting the Digital Advertising Alliance's consumer choice page or the Network Advertising Initiative's consumer opt-out page.

2. Health Apps

In some of our Apps, you may decide to allow us to write data to (share with) Health App, we will transfer to Health App information on your workouts, weight, and dietary energy (calories intake).

3. Law enforcement agencies and other public authorities

We may use and disclose personal data to enforce our Terms and Conditions of Use, to protect our rights, privacy, safety, or property, and/or that of our affiliates, you or others, and to respond to requests from courts, law enforcement agencies, regulatory agencies, and other public and government authorities, or in other cases provided for by law.

4. Third parties as part of a merger or acquisition

As we develop our business, we may buy or sell assets or business offerings. Customers' information is generally one of the transferred business assets in these types of transactions. We may also share such information with any affiliated entity (e.g. parent company or subsidiary) and may transfer such information in the course of a corporate transaction, such as the sale of our business, a divestiture, merger, consolidation, or asset sale, or in the unlikely event of bankruptcy.

5. Affiliates

We may share your personal information with our partner organizations that are part of our corporate group – these are companies that are owned by, own, or are jointly-owned with us. These partner organizations will use the information in ways that align with this Privacy Policy, ensuring that your privacy is respected and protected across all our affiliated services within our fitness and wellness group.

B. CCPA classification of service providers and third parties

In order to provide our services, we may share your personal information with other entities that perform functions on our behalf or assist us in fulfilling our purposes. Depending on their role and relationship

particular purposes we do that, we have provided two tables below that outline the categories of service providers and third parties that we work with. Not all the items listed in the table below are relevant to you. The scope of use of the personal data depends on the services you use.

Category of Service providers	Purpose of sharing data	Categories of personal data shared
Cloud storage service providers	To store your personal data and enable provision of our Service	All categories of personal data
Product monitoring service providers	To prevent and/or address errors or technical issues	All categories of personal data
Communication service providers	To provide our Service To maintain and service your account and provide you with customer service To communicate with you regarding your use of our Service	Identifiers Onboarding data BetterMe Store purchases data Commercial information Device and Geolocation data Conversation with coaches
Marketing service providers	To send you marketing communications To deliver our ads	Identifiers Advertising IDs Onboarding data Commercial information BetterMe Store purchases data B2B Service data
Email verification service providers	To verify your information you before creating account	Identifiers
Gateway service provider and payment processors	To process and fulfill your transactions	Identifiers Onboarding data Commercial information Device and Geolocation data
Processing orders providers (like Shopify)	To process and fulfill your orders	Identifiers BetterMe Store purchases data
Data analytics providers	To research and analyze your use of the Service To audit ad performances	*All categories of personal data*

The categories of third parties to whom personal information was disclosed that may be considered a "sale" under California law are: Marketing service providers, Data analytics providers.

4. How you can exercise your privacy rights

A. General privacy rights

To be in control of your personal data, you have the following rights:

Deleting your personal data. You can request erasure of your personal data, as permitted by law. When you request deletion of your personal data, we will use reasonable efforts to honor your request. In some cases we may be legally required to keep some of the data for a certain time (for example, information about your payments and your requests to us); in such event, we will fulfill your request in relation to portion of the data within the timeframes required for exercising data deletion requests and to another portion of the data after we have complied with our retention obligations (for example, after the end of data retention period obligation for payment data).

Getting to know the details of the processing. You have the right to be informed about the collection and use of your personal data. This means that you have the right to understand what personal data is being processed, why it's being processed, who it's being shared with, how long it's being stored. We strive to follow the transparency requirements and provide most of the information in this Privacy Policy. However, if you have any questions about our data processing practices or if you would like more details about how we use your personal data, please contact us.

Objecting to or restricting the use of your personal data. You can ask us to stop using your personal data or limit our use. For example:

> **Email marketing**: we provide you with the ability to unsubscribe from email marketing communication by following the unsubscribe link in every email or by contacting our support team.
>
> **E-privacy settings:** we also bring EU privacy features to customers worldwide and allow you to influence the tracking decision on a granular per purpose level (this is available by interacting with the e-Privacy settings section that is usually located in the footer, menu, or profile sections of our products).
>
> **Additional means to influence personalized advertising**
>
> > **iOS:** On your iPhone or iPad, go to “Settings,” then “Privacy” and tap “Advertising” to select “Limit Ad Track”. In addition, you can reset your advertising identifier (this also may help you to see less of personalized ads) in the same section.
> >
> > **Android:** To opt-out of ads on an Android device, simply open the Google Settings app on your mobile phone, tap “Ads” and enable “Opt out of interest-based ads”. In addition, you can reset your advertising identifier in the same section (this also may help you to see less personalized ads).
> >
> > To learn even more about how to affect advertising choices on various devices, please look at the information available here.
> >
> > In addition, you may get useful information and opt out of some interest-based advertising, by visiting the following links:
> >
> > Network Advertising Initiative – http://optout.networkadvertising.org/

Digital Advertising Alliance (EU) – http://www.youronlinechoices.com/

DAA AppChoices page – http://www.aboutads.info/appchoices

We value your right to influence the ads that you see, thus we are letting you know what service providers we use for this purpose and how some of them allow you to control your ad preferences.

The right to lodge a complaint with supervisory authority. We would love you to contact us directly, so we could address your concerns as customer satisfaction is our top priority, thus we strive to appoint sufficient resources and efforts to provide you with top of the market customer support and most likely will be able to satisfy your request directly. Nevertheless, you have the right to lodge a complaint with a competent data protection supervisory authority.

The right to data portability. If you wish to receive your personal data in a machine-readable format, you can do so by requesting a copy of your personal data as described above. The data will be made available to you in the .json file or another file format.

Exercising your rights

To exercise any of the available privacy rights, please send a request to privacy@betterme.world or use the privacy features available in our products.

Verification. To ensure that we properly handle the requests you make regarding your rights, we are required to verify those requests. Depending on the type of request and the product used by you, this may include your name, age, email, date of subscription purchase, date of last activity, date of account creation or some other Service use data that will reasonably identify you as an owner of the account, etc. We may also ask you for additional proof of identity, if necessary, but we strive to use require as little as possible (for example, for some requests we will send you a verification code or link)

An authorized agent. You may also designate an authorized agent to exercise your rights on your behalf. If you have provided an authorized agent with a power of attorney, we will work directly with your authorized agent to complete your request. Where you have not provided an authorized agent with a proper power of attorney or similar authorization, we will reach out to you directly to confirm the authorized agent's authority and collect the verification Information. The authorized agent shall verify the identity of both himself and the consumer.

B. California privacy rights

a. What additional rights do you have under CCPA?

This section provides details about additional rights that are available to California consumers under the California Consumer Privacy Act ("CCPA") and California's Shine the Light law. Therefore, this section applies only to residents of California, United States.

For more details about the personal information we have collected, including the categories of sources, please see Section 1 above. We collect this information for purposes described in Section 2 of this

Right to know what personal information is sold or shared and to whom. Under that title, you have the right to request that we disclose to you:

i. The categories of personal information that we collected about you.

ii. The categories of personal information that we sold or shared about you and the categories of third parties to whom the personal information was sold or shared, by category or categories of personal information for each category of third parties to whom the personal information was sold or shared.

iii. The categories of personal information that we disclosed about you for a business purpose and the categories of persons to whom it was disclosed for a business purpose.

The Right to Opt Out of Sale or Sharing and limit Use of Personal Information. We may share certain information about you with our partners for purposes of targeted advertising or data analytics, which could in certain circumstances be characterized as "selling," "sharing," or "targeted advertising" under California laws. You have the right to opt-out of such sale/sharing of your personal information.

Depending on the product you use, we will strive to provide a prominently link named "Your Privacy Choices" that would allow you to exercise this right. Most of the time it will be available to you in the footer, menu, profile, or similar place (depending on the product and device you use). To know more on how to exercise this right depending on the products you use, please visit the below links:

BetterMe: Health Coaching "Your Privacy Choices"

BetterMe: Mental Health (web) "Your Privacy Choices"

BetterMe: Mental Health (mobile) "Your Privacy Choices"

We will also strive to recognize and process your opt-out preference signal as soon as possible after receiving it.

The right not to be discriminated against. Under this title, you have a right not to be discriminated against for exercising any of your rights under the CPRA.

b. Access rights under California's Shine the Light

California also provides its residents with additional access rights. Under Shine the Light law, the residents may ask companies once a year what personal information they share with third parties for those third parties' direct marketing purposes. Learn more about what is considered to be personal information under the statute.

To obtain this information from us, please send an email message to privacy@betterme.world, which includes "Request for California Shine the Light Privacy Information" on the subject line and your state of residence and email address in the body of your message. Please be aware that not all information

5. Age limitations

We do not knowingly process personal data from persons under **18 years** of age. If you learn that anyone younger than 18 has provided us with personal data, please contact us at privacy@betterme.world.

6. International data transfers

We may transfer personal data to countries other than the country in which the data was originally collected in order to provide the Service set forth in the Terms and Conditions of Use and for purposes indicated in this Privacy Policy. If these countries do not have the same data protection laws as the country in which you initially provided the information, we deploy appropriate safeguards, such as standard data protection clauses adopted by the EDPB.

7. Changes to this Privacy Policy

We may modify this Privacy Policy from time to time. If we decide to make material changes to this Privacy Policy, you will be notified through our Service or by other available means and will have an opportunity to review the revised Privacy Policy. By continuing to access or use the Service after those changes become effective, you agree to be bound by the revised Privacy Policy.

8. Data retention

We will store your personal data for as long as it is reasonably necessary for achieving the purposes set forth in this Privacy Policy and our the Terms and Conditions of Use (including providing the Service to you), which includes (but is not limited to) the period during which you have an account with the Service.

We will also retain and use your personal data as necessary to comply with our legal obligations, resolve disputes, and enforce our agreements. For example, under certain accounting and tax laws we are required to store Commercial Information for long periods of time to comply with laws we are subject to. Therefore, even if you submit a data deletion request, a small portion of the data that relates to our compliance obligations will be stored even after the request is satisfied.

9. Personal data controller

BetterMe will be the controller of your personal data.

10. Contact us

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Our website services, content and products are for informational purposes only. BetterMe does not provide medical advice, diagnosis, or treatment